

Granite Heron Rule 30(b)(6) Deposition

Rule 30(b)(6) testimony through Adrian Locke

Civil Action No. SYN-WDNC-24-CV-0520

Taken April 21, 2025 in Charlotte, North Carolina

Adrian Locke appeared for Granite Heron on contract formation, controlled-transport systems, shipment GHL-ASH-091224-087, the company investigation, record custody, claim evaluation, and mitigation. Maya Holt examined for Blue Ember. Eli Mercer represented Granite Heron. The fictional reporter placed Locke under oath.

Locke testified from personal knowledge and preparation with employees and business records. When his answer relied on the organization's investigation rather than firsthand observation, he identified that basis. The parties preserved ordinary objections and agreed that a later transcript correction must state a reason.

EXAMINATION BY MS. HOLT

Q. Are you authorized to bind Granite Heron with answers on the designated subjects?

A. Yes, based on reasonable preparation. Some subjects are also covered by Tess Holloway and source records.

Q. Does designation make every answer an expert opinion?

A. No. I am presenting organizational facts and positions, not product-stability or economic expert testimony.

Locke confirmed that the notice identified separate operational and claim subjects. His preparation included both favorable and unfavorable records, and Granite Heron did not instruct him to withhold an organizational admission merely because it might support Blue Ember's account.

Company and Blue Ember relationship

Q. Describe Granite Heron's business.

A. We are a Georgia corporation providing specialized transport, including controlled frozen lanes. We operate the Fletcher facility used in this shipment.

Q. When did the Blue Ember relationship begin?

A. The master agreement was executed November 1, 2023. Planning and quality work continued into 2024.

Q. Did Granite Heron know BE-214 was a validation program?

A. Yes. The statement of work and shipment descriptions used that term.

Q. What consequence did you understand might follow an excursion?

A. Quarantine and quality assessment were foreseeable. We did not agree that any deviation automatically caused complete product value and all schedule loss.

Q. Who accepted the August work scope?

A. I signed for Granite Heron. Dr. Mira Solis signed for Blue Ember.

Q. Who supervised the Fletcher operation?

A. Tess Holloway was Transport Operations Manager. She oversaw processes but did not personally perform every step on September 12.

Q. Was the Fletcher site acting for a separate company during staging?

A. No. It was Granite Heron's own operation, and the company accepts responsibility for its personnel and systems there.

Training and operating controls

Q. What training applied to this service?

A. Drivers and dispatch personnel had controlled-temperature instruction, power-transition procedures, alarm response, custody records, and the BE-214 briefing required by the quality agreement.

Q. Did the briefing say staging suspended temperature obligations?

A. No. The authorized band continued during staging.

Q. What was required before shutting down tractor power?

A. Personnel were to connect compatible standby power and confirm that the refrigeration unit remained energized.

Q. Was physical connection alone sufficient?

A. No. Verification was part of the process.

Q. What should happen after an out-of-range alarm?

A. Investigate equipment, restore control, record times, notify dispatch and quality contacts, and evaluate backup steps.

Q. Could a driver declare the product released after recovery?

A. No. Blue Ember retained product disposition.

Q. Did Granite Heron later revise training?

A. Yes. We reinforced positive verification of standby power and active-queue testing. Corrective action did not concede every element of the civil claim.

Q. Were those revisions merely optional suggestions?

A. No. They became controlled operating requirements for the affected service class after implementation.

Equipment assignment and pretrip

Q. Identify the equipment.

A. Tractor GH-4821 and trailer TR-7714.

Q. Was the trailer capable of minus-seventy-degree operation?

A. Yes. Maintenance and pretrip records showed qualified capability before loading.

Q. Do you claim a catastrophic refrigeration failure?

A. No. The event involved the transition between power sources during the Fletcher stop, followed by restoration.

Q. Was fuel adequate?

A. The records do not identify fuel depletion as a cause.

Q. Did the pretrip reveal a known defect?

A. No critical defect was recorded. The later investigation focused on whether standby was actually energizing the unit and whether personnel verified status.

Q. Who selected the CTX-9?

A. Blue Ember designated it, and Granite Heron accepted monitoring obligations. Serial CTX9-44721 was recorded.

Q. Did Granite Heron preserve controller data?

A. We preserved the available export, maintenance context, and route file. The payload logger remains the primary source for the pleaded exposure.

Q. Did later inspection find the trailer categorically incapable of frozen service?

A. No. It found a transition and verification failure, which explains why ordinary capability did not prevent this event.

Origin pickup

Q. When did Granite Heron take custody?

A. At 11:20 Eastern Daylight Time on September 12, 2024.

Q. What was inspected?

A. Identifiers, exterior shippers, seals, logger serial, temperature instruction, and custody paperwork, including certificate COC-BE214-091224.

Q. Was any origin defect noted?

A. No visible damage or out-of-range starting condition was noted.

Q. When did the truck leave Solstice Gate Analytics?

A. At 11:47.

Q. Did Granite Heron dispute the minus-eighty to minus-sixty band at pickup?

A. No. Dispatch and the driver had the instruction, with a minus-seventy setpoint.

Q. Was there an authorized fifty-four-minute tolerance?

A. Not in Revision 3.

Q. Does Granite Heron contend the logger was outside the trailer?

A. No. It traveled with the monitored payload as planned.

Q. Was another customer's freight added?

A. No incompatible load is reflected in the record.

Q. Did the driver receive a document allowing warmer carriage during a depot stop?

A. No. Every operative instruction maintained the same band from signed pickup until destination receipt, including the Fletcher staging interval.

Q. Was any origin representative asked to approve a different range?

A. No request or approval appears in the custody file.

Fletcher staging chronology

Q. What does the company know about arrival in Fletcher?

A. The vehicle entered the operational staging process shortly before 13:00. The detailed route and witness evidence provide the minute entries.

Q. Was tractor power removed?

A. Yes, as part of staging.

Q. Was electrical standby successfully verified first?

A. The investigation could not confirm a successful positive verification. The refrigeration unit did not remain continuously energized.

Q. Is that consistent with procedure?

A. No. Procedure required confirmation.

Q. Did the sealed payload leave the trailer?

A. The record does not show an authorized transfer to backup frozen storage during the warming interval.

Q. When was refrigeration restored?

A. The operational response began before the payload logger returned to range at 14:02. Exact actions are described in Holloway's testimony and the event file.

Q. When did the load resume the route?

A. It departed the facility later in the afternoon and reached Blue Ember at 15:26.

Q. Does Granite Heron contend the planned stop transferred custody to anyone else?

A. No. The company retained custody and control throughout the Fletcher event.

Logger curve and alarms

Q. Does Granite Heron accept the CTX-9 threshold times?

A. For this litigation, we do not dispute that it rose above minus sixty at 13:08, peaked at minus 42.8 at 13:37, and returned below minus sixty at 14:02.

Q. That is fifty-four minutes?

A. Yes, using the recorded boundary crossings.

Q. Did an active remote alert reach Blue Ember at 13:08?

A. No timely Blue Ember call is documented at that time.

Q. Why not?

A. The investigation identified a response-profile routing problem and inadequate local escalation during the power transition.

Q. Was the device output altered?

A. Not to my knowledge. The source export was retained and later reports were derived from it.

Q. Did recovery at 14:02 make the earlier readings disappear?

A. No. We relied on recovery only as part of the scientific-causation argument, not as a denial of the curve.

Q. Does Granite Heron admit breaching every contract provision?

A. We admit a deviation and procedure failure but preserve legal disputes over material breach, cause, limitations, and damages.

Investigation and root cause

Q. Who led the carrier investigation?

A. Tess Holloway coordinated operations, with quality and maintenance input. I reviewed the final report.

Q. What root cause was identified?

A. An unsuccessful power transition was not positively verified, and the configured alert path did not prompt timely escalation. Those system and human factors allowed warming before refrigeration resumed.

Q. Did ambient temperature alone cause it?

A. Ambient conditions affected the rate after cooling stopped, but they were not the sole explanation.

Q. Was Blue Ember responsible for the connector?

A. No. The Fletcher transition was within Granite Heron's operation.

Q. What corrective action followed?

A. We added two-person verification for this service class, tested active alert routing before dispatch, revised the staging checklist, and delivered focused retraining.

Q. Did the report say the product was chemically destroyed?

A. No. Our expertise and investigation concerned transport facts. We asked Blue Ember for the scientific disposition basis.

Q. Was the report preserved?

A. Yes, along with supporting records and later explanatory material.

Notice and delivery

Q. Was Dr. Solis telephoned during the first threshold crossing?

A. The file does not show the immediate quality call the protocol expected.

Q. Did Granite Heron decide to continue delivery?

A. After refrigeration was restored and the route resumed, the shipment went to the named destination. Blue Ember then exercised quarantine authority.

Q. Why not return to Solstice Gate Analytics?

A. By the time control was restored, personnel judged prompt delivery to Blue Ember's frozen receiving area to be protective. The failure was not obtaining timely consultation earlier.

Q. What happened at 15:26?

A. Blue Ember signed physical receipt, preserved the load, and reviewed the logger. No one treated the signature as quality acceptance.

Q. When did Granite Heron learn of formal rejection?

A. Blue Ember communicated the September 16 disposition after its internal review.

Q. Did Granite Heron ask that the lot be tested?

A. We requested supporting assessment and available assay information. We did not have authority to compel product use.

Q. Was the delivery record backdated?

A. No. Later explanations did not replace the contemporaneous time entry.

Contract positions

Q. Does Granite Heron agree the documents form an integrated shipment contract?

A. Yes, although we dispute Blue Ember's interpretation of several loss provisions.

Q. Which writing controlled temperature?

A. Release Specification BE214-RS-03 Revision 3, read with the quality agreement and statement of work.

Q. Could a carrier tariff insert a different tolerance?

A. Not without the signed conspicuous change required by the negotiated writings.

Q. What does declared value mean here?

A. Blue Ember selected 1.35 million dollars for enhanced direct-cargo protection. It is a ceiling framework and relevant evidence, not automatic proof of total loss.

Q. Does the master agreement recognize schedule loss?

A. It permits a proven foreseeable time-related claim in some circumstances and excludes remote or indefinite projections. We dispute this claim's support.

Q. Who bears mitigation responsibility?

A. Blue Ember had a duty to take reasonable steps after an assumed breach, and Granite Heron bears the legal burden on the affirmative defense as instructed.

Q. Is net cost deducted from avoided loss?

A. Yes. That is why our model subtracts the alternative's incremental cost.

Scientific-causation limits

Q. Are you offering an opinion that the lot met the validation specification?

A. No. It did not meet the continuous temperature criterion as written.

Q. Do you say Blue Ember was required to release it anyway?

A. Not categorically. We question whether every claimed consequence was reasonably necessary given the testing and possible uses.

Q. What did you understand from the assay summary?

A. Tested material retained measurable activity. The summary did not establish universal inactivity.

Q. Did it establish uniform suitability for validation?

A. I cannot say that. Granite Heron does not own that technical determination.

Q. Then what is the company's causation defense?

A. A deviation alone does not prove the full 4.2 million dollars. Blue Ember must connect disposition, replacement scope, and schedule amounts to the event and address available alternatives.

Q. Does Granite Heron allege fraud by Blue Ember's quality unit?

A. No. We contend the reasonableness and financial consequences are disputed, not that the reviewers fabricated records.

Q. Does the company admit negligence?

A. The pleaded case is contractual. We admit operational failures and reserve the ultimate legal characterization.

Claim review and direct costs

Q. What direct amount did Blue Ember present?

A. 2.2 million dollars, composed of 1.35 million for the validation lot and 850,000 for replacement and related work.

Q. Does Granite Heron accept it?

A. No. We require proof of ledger support, ordinary versus incremental cost, credits, reusable work, insurance, and relationship to the transport event.

Q. Did you deny that any replacement expense occurred?

A. No. We dispute amount and recoverability rather than pretending there was no replacement campaign.

Q. What delay figure was claimed?

A. Two million dollars.

Q. Why challenge it?

A. BE-214 remained a development program with independent uncertainty. Forecasts, milestone assumptions, duration, foreseeability, and later events require testing.

Q. Does Granite Heron seek a double deduction?

A. No. Any mitigation reduction should apply to avoidable delay once, and any credit should offset only the same loss.

Q. Is your company's 1.5 million mitigation figure an admission of all other damages?

A. Absolutely not. It is an alternative computation if the gross model is otherwise accepted.

Basis for the Cobalt Finch position

Q. How did Granite Heron learn about the Cobalt Finch slot?

A. Through claim-related communications and discovery of the October 2 written offer. We later obtained capability and schedule information.

Q. Did the offer expire October 4 at 17:00?

A. Yes.

Q. Had Granite Heron inspected Cobalt Finch before that deadline?

A. No. Blue Ember and Cobalt Finch possessed the technical information. Our position relies on the contemporaneous offer and subsequent testimony about what was then available.

Q. Was BE-214 already approved at Cobalt Finch?

A. Not fully. The offer contemplated expedited transfer and qualification.

Q. What makes Granite Heron call it reasonable?

A. Relevant biologics capability, an identified suite, a fixed December start, defined transfer tasks, an attainable cost estimate, and the magnitude of delay potentially avoided.

Q. Did Cobalt Finch guarantee regulatory success?

A. No. Reasonable mitigation need not be guaranteed, but feasibility must be more than speculation.

Q. Do you agree Blue Ember faced a short decision period?

A. Yes. We contend it could have secured the slot conditionally and completed diligence promptly.

Mitigation arithmetic and assumptions

Q. State Granite Heron's numbers.

A. The earlier campaign would avoid 1.8 million dollars of the claimed delay, and transfer plus qualification would cost 300,000 dollars. Net avoidable loss is therefore 1.5 million dollars.

Q. Who will support that analysis?

A. Dr. Elodie Park, using the schedules, offer, facility testimony, and Blue Ember's own model.

Q. Does your calculation reduce the 2.2 million direct category?

A. No. It addresses delay. We have separate challenges to direct costs but do not mix them into this subtraction.

Q. What if the December campaign had failed?

A. The factfinder should consider probability and risk based on information known by October 4. Park explains why the available evidence supports feasibility.

Q. What if Blue Ember reasonably required more qualification?

A. The cost and timeline should reflect necessary work. Our 300,000-dollar allowance is meant to include that incremental effort.

Q. Is the mathematical result disputed?

A. The subtraction is simple; feasibility and the avoidable-loss premise are contested.

Records and preservation

Q. What source information has Granite Heron retained?

A. Contracts, shipment and custody records, CTX-9 and controller material received or created, route information, alarm communications, investigation, training, maintenance, corrective action, claim exchanges, invoices, and relevant messages.

Q. Are all entries contemporaneous?

A. No. The source logs are distinguished from later witness interviews and summaries.

Q. Was anything intentionally changed to fit litigation?

A. Not to my knowledge. Corrections and explanatory documents are separately dated.

Q. Did Granite Heron preserve the response-profile configuration?

A. It preserved available configuration and investigation evidence sufficient to identify the routing problem. The system's ordinary retention limits are documented where relevant.

Q. Does a portable report replace the raw logger export?

A. No. The report is a human-readable rendering. We maintain traceability and do not claim unassisted machine interpretation of scientific effect.

Q. Are attorney communications included?

A. Privileged communications are withheld and logged as required. The factual business sources remain available.

Q. Who can authenticate operations records?

A. Tess Holloway and the identified custodians can describe creation and retention within their roles.

Final admissions and transcript review

Q. Granite Heron does not dispute custody from 11:20 to 15:26, correct?

A. Correct.

Q. It does not dispute the recorded fifty-four-minute excursion or minus 42.8 maximum?

A. Correct, while preserving arguments about product effect and damages.

Q. It admits timely quality escalation did not occur?

A. The expected immediate call is not documented, yes.

Q. It admits Blue Ember controlled release?

A. Yes.

Q. And Granite Heron continues to dispute the full claimed amount?

A. Yes, including causation, certainty, contract limits, and mitigation.

Q. Did attachment of transaction documents to later pleadings change their original dates?

A. No. Execution and issue dates remain those shown on the instruments.

The examination concluded. Locke reserved the agreed opportunity to review the fictional transcript and later supplied only typographical corrections that did not alter substance. Counsel retained the descriptive exhibit list. No real carrier, laboratory, customer, address, device, shipment, or court proceeding is represented in this record.

The reporter's closing certificate states that the transcript reflects the questions and answers given, subject to the identified corrections, and that the reporter has no financial interest in the fabricated dispute.